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| 12. | Malone v. McCloud Bros Inc.<br>22-1295099 | <p>The Motion for Summary Judgment, or alternatively for Summary Adjudication by McCloud Bros. Inc. ("McCloud") is <b>DENIED</b>, as set forth herein.</p> <p>The Complaint asserts two causes of action arising from the auto accident. The first is for Motor Vehicle and the second is for General Negligence. Both causes of action are based on plaintiff's allegation that Cody Miller was negligent in the operation of the vehicle and was employed by McCloud Bros. Inc. at the time he operated the vehicle. Plaintiff asserts that as a result of Cody Miller being employed by McCloud Bros. Inc. at the time of the accident, McCloud is vicariously liable for her injuries. (Complaint ¶¶10, MV-2, GN-1)</p> <p>An employer is vicariously liable for its employee's conduct when the employee was acting within the scope of her employment. (<i>CACI No. 3701</i>) McCloud does not argue or submit evidence that it is not vicariously liable. Miller's status at the time of the accident is not disputed. McCloud states in the motion that it hired Miller as an Operator on 6/29/20. (UMF 6) McCloud owned the vehicle Miller was driving at the time of the accident. (UMF 4) At the time of the accident, Miller was working for McCloud. (UMF 3) While the complaint includes alternative allegations of negligent entrustment, hiring, supervision and retention of Miller, there remains a question of fact as to whether McCloud is vicariously liable for the negligence of its employee.</p> <p>Since McCloud has not met its burden of establishing that it is not vicariously liable for the acts of its employee, the motion is <b>DENIED</b>.</p> <p>In addition to the foregoing, the motion is also DENIED pursuant to <i>CCP §437c(h)</i>. This subsection states in part that "if it appears from the affidavits submitted in opposition to a motion for summary judgment or summary adjudication, or both, that facts essential to justify opposition may exist but cannot, for reasons stated, be presented, the court shall deny the motion, order a continuance to permit affidavits to be obtained or discovery to be had, or make any other order as may be just."</p> <p>Here, Plaintiff submits evidence that Miller has failed to appear for his court ordered deposition on 10/21/24. (Aaron Miller Decl. ¶7; Exhs. C-D) The history leading up to the discovery motion that resulted in the order to appear, along with plaintiff's subsequent conduct, is evidence of plaintiff's diligence in attempting to obtain</p> |
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|     |  | <p>discovery. It is axiomatic that the driver of the vehicle would likely have "facts essential to justify opposition" to the motion and pertaining to the allegations in the complaint. Although McCloud and Miller are both represented by the same attorneys, the defense offers no evidence relating to the failure to appear or an assurance that Miller would appear for deposition if the hearing on this motion were continued. Accordingly, the motion is <b>DENIED</b> on this ground as well.</p> <p><i>Counsel for the defendants is ordered to give notice of this ruling.</i></p> |
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